

On the Virtues

Philo of Alexandria

translated by C. D. Yonge translation

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Chapter I

1

Having previously said all that appeared to be necessary about justice, and those precepts which are closely connected with it, I now proceed in regular order to speak of courage, not meaning by courage that warlike and frantic delirium, under the influence of passion as its counsellor, which the generality of men take for it, but knowledge; (this seems to be an imitation of what Plato says in the Protagoras. “We must not look upon all bold (tharraleous) men as courageous (andreious), for boldness is derived from human skill, or from anger, or from madness; but courage arises only from nature, and from a good disposition of the soul.” — P. 350.)

2

for some persons, being elated by boldness when they have bodily strength to assist them, array themselves in the ranks of war, in complete armour, and slay innumerable hosts of the enemy to a man, gaining by their exploits the unseemly but fine sounding name of preeminent valour, being accounted by the multitude which judges of such matters exceedingly glorious in their victory, though in fact they have been savage and brutal both in nature and practice, having thirsted for human blood.

3

But then as some men who, always remaining in their own houses, while their bodies have been worn away either by long sickness or by painful old age, still being healthy and vigorous in the better part of their soul, and being full of high thoughts, and inspired with a braver and happier fortitude, never, not even in their dreams, meddling with warlike weapons, nevertheless by their exposition and advocacy of wise counsels for the common advantage, have often re-established both the private affairs of individuals, and the common prosperity of

their country when it was in danger, putting forth unyielding and inflexible reasonings concerning what has been really expedient.

4

These men, then, are they who practise real courage, being studiers and practisers of wisdom; but those other men have only what does not deserve to be so called though it assumes the name, as they live in that incurable disease, ignorance, which one may very fitly and properly call audacity, just as people say that in coins base metal often bears the same impression as the real stamp and money.

Chapter II

5

Moreover, there is also no small number of other things in human life which are confessed to be very difficult to endure, such as poverty, and want of reputation, and mutilation, and various kinds of diseases, by which weak spirited men are broken down, not being able to raise themselves at all through their want of courage; but those men who are full of high thoughts and noble spirits, rise up to struggle against these things, and contend against them with fortitude and exceeding vigour, ridiculing and greatly despising their threats and attacks against their poverty; arraying wealth, not that wealth which is blind, but that which sees acutely, whose images and treasures the soul is naturally proud to treasure up;

6

for poverty has overthrown innumerable multitudes of men, who, like wearied athletes, have fainted and fallen, being reduced to a state of prostration by their want of real courage. And if truth is to be the judge, then no one whatever is really poor, who has the indestructible and inalienable riches of nature for his purveyor, the air, that first and most necessary and incessant support of life, being continually inhaled night and day, and besides that the numberless fountains, and the inexhaustible supply not only of winter torrents but of regular rivers,

furnishing everlasting streams for drink, and besides this the abundance of all kinds of food to eat, and all descriptions of trees which are continually bearing their yearly fruits; for these are treasures of which no one is destitute, but all men in every quarter of the globe enjoy them in the greatest abundance.

7

But if any persons, utterly disregarding the true wealth of nature, pursue instead the riches of vain opinions, relying on those riches which are blind instead of on those which are gifted with acute sight, and taking a guide for their road who is himself crippled, such men must of necessity fall down.

Chapter III

8

We have then before now described that wealth which is the guard of the body, being the thing discovered by and bestowed on men by nature; but that more dignified and respectable kind, which belongs not to all men but to those who are themselves truly respectable and glorious, must now be spoken of; this kind of wealth wisdom furnishes by means of rational, and moral, and natural doctrines, and meditations from which the virtues are derived, which eradicate luxury from the soul, engendering in it a desire for temperance and frugality, in accordance with the resemblance to God at which it aims;

9

for God is a being who is in need of nothing, as there is nothing of which he is destitute, but as he is himself all-sufficient for himself. But the bad man is one of extravagant tastes, being always thirsting for what he has not got, because of his insatiable and unappeasable appetites which he fans and excites like fire, and kindles into a flame, directing them towards every kind of gain, whether great or small; but the virtuous man wants but little, being placed as it were on the borders between the immortal and the mortal nature, having wants

indeed by reason of his body being mortal, and his freedom from extravagance because his soul is continually longing for immortality:

10

and so they array wealth against poverty, and glory against a want of reputation; for praise, having excellence and virtue as a starting point, and flowing forth from it as from an everlasting fountain, does not mix with the multitude of inconsiderate men, who are in the habit of laying bare the inconsistency of the soul, with unstable declarations, which sometimes they are not ashamed to sell cheaply in their desire of base gains, uttering them in reproach of men selected for their excellence. But the number of such men is small, for virtue is not a thing frequently met with in the race of men:

11

but since no perfect antidote or remedy can be found for the mutilation of the outward senses, by which thousands and thousands of persons have died prematurely while still living, prudence, that best of all qualities within us, sets itself against it to prevent it, implanting eyes in our intellect, which, by reason of its sagacious capacity, are altogether and entirely superior in acuteness of vision to the eyes of the body:

12

for these last see only the surfaces of the things presented to them, and require light from without to enable them to do that, but the intellect penetrates into the inmost recesses of bodies, closely surveying and investigating the whole of them, and each separate part, and also the natures of those incorporeal things, which the external senses are unable to contemplate at all. For the mind may almost be said to possess all the acuteness of vision of the eye, without being in need of any spurious light, but being in itself a star, and as it were a sort of representation or copy of the heavenly bodies:

13

accordingly, the diseases of the body inflict very little injury on us, while our souls are in a sound state; and the sound health of the soul

consists in a good admixture of the powers conversant with hunger, and appetite, and reason, the reasoning power having the predominance, and guiding the other two, as a charioteer guides and restrains restive horses;

14

the proper name of this healthy state of the soul is moderation, (the Greek word is *sōphrosynē*, from *sōzōm*, “to preserve,” and *phēn*, “the mind,” or as Philo says, from *sōtēuria*, “salvation,” *toū phronounti*, “to our thinking part.”) which produces salvation to the thinking part of the faculties in us; for as it is constantly in danger of being overwhelmed by the impetuosity of the passions, moderation suffers it not to be sunk in the depths, but lifts it up and raises it on high, endowing it with soul and vitality, and in some sense with immortality.

15

But in all the subjects which I have here mentioned, there are admonitions and lessons engraved lastingly in many passages of the law, persuading the obedient with great gentleness, and the disobedient with some severity, to despise all the things which affect the body and all external circumstances, looking upon a life in accordance with virtue to be the one proper end and object, and desiring everything else which appears conducive to this end;

16

and if I had not in my former treatises dwelt upon all points connected with simplicity and humility, I would on this present occasion endeavour to explain the matter at some length, connecting and adapting together all the precepts which appear to lie scattered about in different places but as I have already said all that the occasion required on these topics, it is not necessary to recapitulate my arguments;

17

those, however, who are not indifferent to the subject, but who have applied themselves with diligence to the study of the preceding

treatises, ought to be aware that nearly all the things which I have said about simplicity and humility apply likewise to courage, since that also is the attribute of a vigorous, and noble, and very well regulated soul, to despise all the things which pride is in the habit of dignifying and extolling, to the utter destruction of life in accordance with truth.

Chapter IV

18

But such great anxiety and energy is displayed by the law in attaining the object of training and exercising the soul so as to fill it with courage, that it has even descended to particulars in the matter of raiment, enjoining what men ought to wear, and prohibiting with all its might a man from wearing the garments of a woman, in order that no trace of shadow of the female may be attached to the male part of mankind, to its discredit; for the law, being at all times in perfect consistency and accordance with nature, desires to establish laws which shall be akin to and in perfect harmony with one another from beginning to end, even in those minute points which, by reason of their insignificance, appear to be beneath the notice of ordinary legislators.

19

For as it perceived that the figures of men and women, looking at them as if they had been sculptured or painted forms, were very dissimilar, and, moreover, that the same kind of life was not assigned to both the sexes (for to the woman is assigned a domestic life, while a political one is more suited to the man), so also in respect of other matters which were not actually the works of nature, but still were in strict accordance with nature, it judged it expedient to deliver injunctions which were the result of sound sense and wisdom. And these related to the mode of living, and to apparel, and to other things of that kind;

20

for it thought it desirable that he who as truly a man should show himself a man in these particulars also, and especially in the matter of dress, since, as he wears that both day and night, he ought to take care that there is no indication in it of any want of manly courage.

21

And, in the same manner, having also equipped the woman in the ornaments suited to her, the law prohibits her from assuming the dress of a man, keeping at a distance men-women just as much as it does women-men; for the lawgiver was well aware that when only one single thing in the proper economy of the house was removed, nothing else would remain in the same position as it ought and as it was in before.

Chapter V

22

Moreover, as the affairs of men are usually looked at with reference to two different times, that of peace and that of war, one can see that there are particular virtues which are visible at each period. Now, of the other virtues we have spoken previously, and we shall speak again if any necessity shall arise; but, as the present moment, we had better examine courage, not in a superficial manner, the works of which, even in time of peace, the lawgiver has celebrated in many passages of his delivery of the law, always having a due regard to the time, as we mentioned in the proper place. Therefore, now we will begin to speak of its effects as relating to war, having first premised thus much by way of preface,

23

that when he makes out the roll of all the soldiers of the army he does not think it expedient to summon forth all the youth of the nation, but some he excuses, stating very reasonable causes for their exemption from military service. And, above all, he exempts all those who are alarmed or cowardly, as they would be likely to be taken prisoners by

reason of their innate effeminacy, and to cause fear to the rest who were fighting alongside of them;

24

for a man's neighbour is very apt to take the impression of any one of his faults, and especially this is the case since men's reason is confused at that time by reason of the disorder of the contest, and is unable to attain to an accurate notion of the real picture of affairs; for, at such a time, they are wont to call prudent caution timidity, and to look upon fear as a prudent knowledge of the future, and upon a desire for safety as unmanly cowardice, investing most shameful conduct with specious and dignified appellations.

25

In order, therefore, that the affairs of his own people may not be injured by the cowardice of those who go forth to battle, while the enemy obtains success and glory, slaying those cowardly foes with great contempt, and being also aware that an inactive irresolute coward was of no use at all, but was rather a hindrance to success, the lawgiver removed from the army all those who were devoid of boldness, and those who were inclined to faint or shrink out of cowardice, just as I imagine no general would compel men afflicted with any bodily infirmity to go forth to war, but would allow their weak health to plead their excuse.

26

And cowardice is a disease, and a worse one, too, than any of those which affect the body, inasmuch as it destroys the faculties of the soul; for diseases of the body, indeed, are at their height but for a short period, but cowardice is an evil which grows with the man in a greater degree, or, at all events, not less than the parts of the body which are united to it, cleaving to the soul from its earliest infancy to the very extremity of old age, unless God himself interpose to cure it; for all things are possible to God.

27

And, moreover, the lawgiver does not summon even all the men of impetuous courage, not even although they are full of strength and energy, both in soul and body, and eager to be the foremost in the conflict and in the encountering of danger; but, having praised them for their good will, because they display a disposition willing to share in the dangers of their countrymen, and eager, and void of fear, he proceeds to inquire whether they are entangled in any important circumstances which have a strong influential power of attraction.

28

For, says he, "If any one has lately built a house, and has not as yet entered it to dwell in it; or if any one has planted a newlyarranged vineyard, having himself planted the cuttings in the ground, but which has not yet arrived at the season of its bearing fruit; or if any one has espoused a virgin and not consummated his marriage; he shall be excused from all military service." Humanity here finding an excuse for such exemption for two causes;

29

first of all, in order that, since the events of war are uncertain, others who have never laboured in the work may not reap the fruits of these men's toil; for it appeared to be a hard thing for a man to be unable even to enjoy what really belonged to him, but for one man to build a house and another to dwell in it; and for one man to plant a vineyard and for another, who never planted it, to enjoy the fruit thereof; and for one man to espouse a wife, but for one who has not espoused her to complete the marriage; as it was not expedient that those who had entertained good hopes respecting life to find them all baffled and vain.

30

And, secondly, that men might not be warring with their bodies while their souls were far from the battle; for it is impossible but that the minds of men in such a condition as has been described above must be held back and kept on the stretch, from a desire to enjoy the things from which they have been torn away. For as men who are hungry or

thirsty, if they only get a sight of anything to eat or to drink, pursue it and run after it without ever turning aside in their eagerness to reach it, so also men who have laboured to obtain a legitimate wife, or a house, or the possession of a farm, and who in their hopes believe that the time for their enjoyment of each of these objects is all but arrived, if they are then deprived of that enjoyment, resist, so that though they may be present in body elsewhere, they are not present with the better part of their soul, by which it is that men succeed or fail.

Chapter VI

31

Therefore our lawgiver does not think it proper to include those men, or any in a similar condition, in the roll of his soldiers, but only such as have no domestic circumstances of such a nature to detain them, in order that with free and unembarrassed inclinations they may engage in the pursuit of danger without shrinking; for as a weak or crippled body derives no advantage from a panoply of armour, which it will rather discard as being unable to bear it, so, in the same manner, a vigorous body causes affliction to a diseased soul by not being in conformity with its existing circumstances.

32

And our lawgiver, having a regard to these facts, selects not only the captains, and the generals, and the other leaders of the army, but also picks out separately each individual soldier, examines in what state he is in respect of good condition of body and firmness of mind, examining his body to see if it is uninjured in all its parts, and in sound health, and in all its joints and limbs well adapted for the positions and actions which may be required of it; examining the soul also, to see whether it is full of confidence and proper courage, whether it is intrepid, fearless, and inspired with a noble spirit, whether it is eager for honour and inclined to prefer death with glory to an inglorious life;

33

for each one of these qualities and circumstances is individually a separate power, if one is to say the plain truth. And if they are all united together in one individual, then they do most abundantly exhibit a certain invincible and irresistible might, subduing all their enemies without loss.

Chapter VII

34

And the sacred volumes contain the most undeniable proofs of what has been here stated. The most numerous of all nations is that of the Arabians, whose ancient name was the Madienaeans. These people being inimicably disposed towards the Hebrews, for no other cause more than because they honour and worship the highest and mightiest Cause of all things, as being dedicated to the Creator and Father of the universe as his peculiar people, and having tried every imaginable device and exhausted every contrivance to cause them to abandon the worship of the one only true and living God, and to forsake holiness and adopt impiety, thought that if they could do so they should be easily able to get the better of them. But when, in spite of having both done and said innumerable things, they had failed in everything, like dying people who now despair of their safety, they contrived a device of the following nature.

35

Having sent for the most beautiful of their women, they said to them, You see how invincible the multitude of the Hebrews is; and a defence to them more formidable than even their number is their unanimity and agreement; and the greatest and most powerful cause of this unanimity is the idea which they entertain of the one God, from which, as from a fountain, they derive a united and indissoluble affection for one another.

36

But man may be caught by pleasure, and especially by such pleasure as proceeds from connections with women. And ye are very beautiful, and beauty is by nature a seductive thing; and youth is a season of life very apt to fall into intemperance.

37

And do not be afraid of the names of concubinage or adultery, as if they would bring shame upon you, but set against the names the advantages which will ensue from the facts, by which you will change your evil reputation, which will endure only for a day, into a glory which will never grow old or die; abandoning your bodies, indeed, as far as appearance goes, which, however, is only a desire and manoeuvre to defeat the enemy, and preserving still the virginity of your souls, on which you will for the future set the everlasting seal of purity.

38

And this war will have a novel glory as having been brought to a successful issue by means of women, and not by means of men. For we confess that our sex is in danger of being defeated, because our enemies are better provided with all the appliances of war and necessities for battle; but your sex is more completely armed, and you will gain the greatest of all advantages, namely the victory; carrying off the prize without having to encounter any danger; for without any loss or bloodshed, or indeed, I may rather say, without even a struggle, you will overpower the enemy at the first sight of you, merely by being beheld by him.

39

When they heard this, they ceased to think of or to pay the very slightest regard to their character for purity of life, being quite devoid of all proper education, and accordingly they consented, though during all the rest of their lives they had put on a hypocritical appearance of modesty, and so now they adorned themselves with costly garments, and necklaces, and all those other appendages with which women are accustomed to set themselves off, and they devoted all their attention to enhancing their natural beauty, and making it

more brilliant (for the object of their pursuit was not an unimportant one, being the alluring of the young men who were well inclined to be seduced), and so they went forth into public.

40

And when they came near to them they put forth immodest wanton looks, and sought to entice them with caressing words, and dances, and lascivious movements; and in this way they enticed the shallow-minded company of the young men, youths whose dispositions had no ballast nor steadiness in them. And by the shame of their own bodies they captivated the souls of those who came to them, bringing them over to unholy sacrifices which ought not to have been sacrificed, and to libations which should never have been offered in honour of deities made with hands, and thus they alienated them from the worship of the one only and truly divine God. And when they had accomplished their purpose, they sent the glad tidings to the men of their nation;

41

and they would have been likely to draw over others also of the firmer and stronger minded sort, if the bountiful and merciful God had not taken compassion upon their unhappy state, and by the prompt punishment of those who had gone astray and wrought folly (and they were twenty-four thousand men), by which he admonished and checked by terror those others who were in danger of being carried away by the torrent.

42

But the ruler of the whole nation, infusing into the ears of his people doctrines of piety, and charming the souls of his subjects with them, selected and picked out a thousand men of each tribe, choosing them with regard to their excellence, and he bade them to inflict upon the enemy punishment for the treachery which they had contrived by means of the women, when they hoped to destroy the whole multitude by casting them down from the heights of their pure and sublime piety, though, in effect, they were only able to delude those whom I have enumerated.

Chapter VIII

43

These men, then, being arrayed against them, a small number against many myriads of men, and availing themselves of their skill, and exerting all their courage, as if each individual were himself a host, rushed upon the dense phalanxes in a contemptuous manner, and slaying all whom they met, they mowed down the thicklypacked battalions, and all the forces which were in reserve as a reinforcement to fill up the ranks where men were slain, so that they overthrew many myriads with their mere single shout, till not one of all the youth in the opposing army was left. And they slew also all the women who had assented to the unholy devices of the men, taking the maidens alive, because of their compassion for their innocent age,

44

and though they brought this terrible war to a successful termination, they lost not a single one of their own men; but every man who went forth unto battle returned back again unwounded and unhurt, just as he entered the conflict, or rather, if one is to say the real truth, with redoubled vigour; for their joy at this victory made their strength not inferior to what it had been at first;

45

and the cause of this, was simply that they even courted danger in their anxiety to engage in the contest in the cause of piety, in which God, that invincible ally, fights in front of them as their champion, inspiring their minds with wise counsels, and implanting the mightiest vigour in their bodies.

46

And there is evident proof that God was their ally, in the fact that many myriads of men were defeated by a few, and that not one man of the enemy escaped, and that not one of their own troops was slain, and that the army was not diminished in either number or power;

47

on which account Moses says in his exhortations to his People: “If you practise justice, and holiness, and the other virtues, you shall enjoy a life untroubled by wars and invariably peaceful; or if any war comes upon you, you shall with ease subdue your enemies, God being the leader of your host, although invisibly, who takes care to put forth his might to save the good.

48

Therefore, if thy enemies come upon thee with many myriads of men, a host both of infantry, and of cavalry, trusting in the beauty of their armour; and if they pre-occupy all the strong and defensible places, and become masters of the country, and if they rejoice in unbounded supplies, still do not you be alarmed and fear, even if you are destitute of the things of which they have plenty, such as allies, and arms, and situations, and good opportunities, and the supplies of war.”

49

For very often a violent wind, falling upon them as upon a merchant vessel laden with all kinds of good things, has at once overthrown and destroyed these things; while upon those who have been imperfectly supplied, and who have been sorrowful, hanging down their heads like ears of corn withering under drouth and disease, God has suddenly showered down and poured forth his saving powers, and has caused them to rise up and become prosperous and perfect.

50

From which it is plain that he cleaves to what is holy and righteous; for those whose ally is God are consummately happy, but those to whom he is an enemy are sunk in the lowest depths of misery.

Chapter IX

51

We must now proceed in due order to consider that virtue which is more nearly related to piety, being as it were a sister, a twin sister, namely, humanity, which the father of our laws loved so much that I

know not if any human being was ever more attached to it. For he knew that this was as it were a plain and level road conducting to holiness; and, therefore, he trained and instructed all the people who were in subjection to himself in precepts of fellowship, the most excellent of all lessons, exhibiting to them his own life as an archetypal model for them to copy.

52

Every thing, then, that was ever done by him from his earliest infancy to old age in the way of taking care and providing for each separate individual and for all men in general, has been already explained in the three books of the treatise which I have set forth about the life of Moses. But it is necessary also to make mention of one or two points which he set in order when at the point of death; for they are indicative of that continual and uninterrupted virtue which he stamped upon his own soul, which was thus fashioned after the divine model, in such a way that it should be free from all indistinctness and confusion.

53

For when the appointed limit of human existence was on the point of being reached by him, and when by distinct intimation from God he became aware that he was about to depart from the world, he did not act like any other person, whether king or private individual, whose only anxiety and prayer is to leave their inheritance to their children; but although he had become the father of two sons, he was not so much under the influence of the natural affection and love for his offspring which he undoubtedly felt as to bequeath his authority to either of them. And yet, even he had some suspicion of the worth of his children; at all events, he had no lack of virtuous and pious nephews, who were, indeed, already invested with the high priesthood, as a reward of their virtue.

54

But, perhaps, he did not think fit to draw them away from the divine ministrations which belonged to their office, or, as was very likely, he

considered that it would be impossible for them to attend to both matters, the priesthood and the royal authority, the one of which employments professes to be devoted to the worship of God, the other to the government of and to the care of providing for men. Perhaps, also, he did not think fit to become himself the judge in so important a matter, especially as it is an attribute of almost divine power to see thoroughly who is by nature well adapted for such authority, as it is the Deity alone to whom it is easy to see into the dispositions of men.

Chapter X

55

And the clearest proof of what I have said may be afforded by the following consideration. He had a friend and pupil, one who had been so almost from his very earliest youth, Joshua by name, whose friendship he had won, not by any of the arts which are commonly in use among other men, but by that heavenly and unmixed love from which all virtue is derived. This man lived under the same roof, and shared the same table with him, except when solitude was enjoined to him on occasions when he was inspired and instructed in divine oracles. He also performed other services for him in which he was distinguished from the multitude, being almost his lieutenant, and regulating in conjunction with him the matters relating to his supreme authority.

56

But yet, though Moses had thus an accurate knowledge of him from his experience of him for a long time, and though he knew his excellence both in word and deed, and the greatness of his good will towards his nation, yet he did not think fit to leave him as his successor himself, fearing lest he might perchance be deceived in looking on that man as good who in reality was not so, since the tests by which one can judge of human nature are in a great degree indistinct and unstable.

57

On which account he did not trust to his own knowledge, but he supplicated and entreated God, who alone can behold the invisible soul, who sees accurately the mind of man, to choose and select the most suitable man for the supreme authority, one who would care for the people who were to be his subjects like a father. And stretching his pure, and, as one may say in a somewhat metaphorical manner, his virgin hands towards heaven, he said,

58

“Let the Lord God of spirits and of all flesh look out for himself a man to be over this multitude, to undertake the care and superintendence of a shepherd, who shall lead them in a blameless manner, in order that this nation may not become corrupt like a flock which is scattered abroad, as having no Shepherd.”

59

And yet who was there of all the men of that time who would not have been amazed if he had heard this prayer? Who was there who would not have said, “What art thou saying, master? hast not thou legitimate children? hast thou not nephews? Above all men, leave thy authority to thy children first, for they are thy natural heirs; but if thou disapprovest of them, at all events bequeath it to thy nephews;

60

and if thou lookest upon them also as unfit, having a greater regard for the whole nation than for thy nearest and dearest relations, still thou hast an irreproachable friend who has given a proof of his perfect virtue to you who art all-wise and capable to judge of it. Why, then, do thou not think fit to show your approbation of him, if thy object is not to select one on account of his family but on account of his virtue?”

61

But Moses would reply: “It is proper to make God the judge in every thing, and most especially in those things in which the acting well or ill brings innumerable multitudes to happiness, or on the contrary to misery. And there is nothing of greater importance than sovereign authority, to which all the affairs of cities, in war or peace, are

committed. For as in order to make a successful voyage one has need of a pilot who is both virtuous and skilful, in the same manner there is need of a very wise governor, in order to secure the good government of the subjects in every quarter.

62

Moreover, wisdom is a thing not only more ancient than my own birth, but even than the creation of the universal world; nor is it lawful nor possible for any one to decide in such a matter but God alone, and those who love wisdom with guilelessness, and sincerity and truth;

63

and I have learnt by myself not to approve of, as fit for dominion, any one of those men who appear to be suitable. "I, indeed, myself, did neither undertake the charge of caring for and providing for the common prosperity of my own accord, nor because I was appointed to the office by any human being; but I undertook to govern this people because God manifestly declared his will by visible oracles and distinct commandments, and commanded me to rule them; and I, after having besought and supplicated him to excuse me, because I had a respect unto the greatness of the business, at last, after he had repeated his commandments many times, I with fear obeyed.

64

How, then, can it be any thing but absurd for me not now to follow in the same steps, and, after I myself, when about to assume the supreme authority, had had God for my elector and approver, not now in my turn to refer to him alone the appointment of my successor, without calling in the assistance of any human wisdom which is likely to be akin in some degree to folly, especially as the government to be undertaken is not one over any ordinary nation, but one which is the most populous of all nations everywhere, and one which puts forth the most important of all professions, the worship of the one true and living God, who is the Creator and the father of the universe?

65

For whatever advantages are derived from the most approved philosophy to its students, full as great are derived by the Jews from their laws and customs, inasmuch as through them they have rejected all errors about gods who have been created themselves; for there is no created being who is truly God, but such a one is so only in appearance and opinion, being destitute of that most indispensable quality in God, namely, eternity.”

Chapter XI

66

This, now, is the first and most conspicuous proof of his great humanity and good faith towards and affection for all those of his own people, and there is also another which is not inferior to that which I have already mentioned. For when Joshua, being his most excellent pupil and the imitator of his amiable and excellent disposition, had been approved of as the ruler of the people by the judgment of God, Moses was in no respect downcast as some other men might have been at the fact of its not having been his own sons or nephews who were appointed;

67

but he was filled with unrestrained joy because there was secured to the nation a governor who was in all respects excellent (for he was sure that the man who was pleasing to God must be virtuous and pious); and accordingly, taking him by the right hand, he led him forth to the assembled multitude, not being at all alarmed at the idea of his own impending death, but feeling that he had received a new cause of joy in addition to his former reasons for cheerfulness, not only from the recollection of his former happiness, in which he had passed his life abundantly in every species of virtue, but from the hope also that he was now about to become immortal, changing from this corruptible to an incorruptible life; and accordingly, with a cheerful look

proceeding from the joy which he felt in his soul, he spoke to them with joy and exultation in the following manner, and said:

68

“It is time for me now to be released from the life in the body; and my successor in the government of your nation is this man, having been appointed thereto by God.” And then he proceeded to detail to them the oracular words of God which he had received as the proofs of this his successor’s appointment by God; and the people believed them.

69

And then, looking upon Joshua, he exhorted him to approve himself a valiant man, and to be very strong in good and wise counsel, and to show himself the interpreter of his counsels, and to accomplish all his purposes with unyielding and vigorous decision. And he said thus much to him though he was not perhaps in need of any recommendation, but because he would not conceal their mutual affection for one another and for the whole people, by which he was spurred on as it were to lay bare before him what he thought would be advantageous.

70

He had also received an oracular command to call his successor and to render him full of confidence and good courage to undertake the care of the nation, without being apprehensive of the great burden of the authority committed to him, in order that he might be a standard and rule for all governors who should come hereafter, and who should look upon Moses as their model; so that none of them should ever grudge good advice to their successors, but should train, and exercise, and instruct their souls with their suggestions and counsels.

71

For the advice of a good man is often able to raise up again those men whose minds are prostrate, and to elevate them again to a height, implanting in them a noble and intrepid spirit, which shall thus be established firmly above all circumstances and exigencies of time.

72

Accordingly, after having held a discourse in which he uttered sentiments suited both to the people who had been committed to his care, and to those who were to be the inheritors of his authority, he begins to hymn the praises of God in a song, uttering the last psalm of thanksgiving in this life while still in the body, for all the kindnesses and mercies of extraordinary and unprecedented kinds, which he had received from his birth to this his old age;

73

and having collected a most divine assembly to hear these praises, namely, the elements of the universe, and the most comprehensive parts of the whole world, the earth and the heaven, one of which is the dwelling of mortals, and the other the home of the immortals, he sang his hymn of praise in the middle of them all, with every description of harmony and symphony which men and ministering angels hear;

74

the one, as being pupils, in order to learn to display their own grateful dispositions in a similar manner, and the others as presiding over them, and as by their own experience being able to take care that no part of this hymn shall be out of tune, and also as feeling some doubt whether any human being bound up in a mortal body could be able to attune his soul to music in the same manner as the sun, and the moon, and the rest of the company of the stars, having properly conformed himself to that divine instrument, the heaven, and to the universal world.

75

And the declarer of the will of God being thus placed amid the beings who form the host of heaven, mingled with his grateful hymns of praise to God proofs of his own genuine affection and good will towards his nation, while he reproved them for their previous sins, and gave them admonitions, and advice, and precepts for the present occasion, and exhortations for the future, inspiring them with favourable hopes, which it was inevitable that favourable events would of necessity follow.

Chapter XII

76

And when he had finished his hymn of melodious praise, which was thus in a manner woven together and made up of piety and humanity, he began to be changed and to depart from mortal existence to immortal life, and gradually to feel a separation of the different parts of which he was composed, namely of his body, which was now removed from him like a shell from a fish, from his soul which was thus laid bare and naked, and which desired its natural departure from hence.

77

Then, having prepared all things for his departure, he did not approach the actual termination of his existence until he had shown respect to all the tribes of his nation by harmonious and consistent prayers in their behalf, honouring them all to the number of twelve by the recapitulation of the name of the patriarch of each tribe, all which prayers we must believe will certainly be accomplished, for the man who offered up the prayers was a devout servant of God, and God is merciful, and the persons on whose behalf the supplications were uttered were men of pure and noble birth, classed in the highest rank possible by the supreme leader of the people, the Creator and Father of the universe.

78

And the things which were entreated for in the petitions were real blessings, not only that such things might fall to their share in this mortal life, but still more so when the soul should be released from the bondage of the flesh;

79

for Moses alone, looking upon it as it should seem that his whole nation had from the very beginning the closest of all possible relationships to God, one much more genuine than that which consists of ties of blood, made it the inheritor of all the good things which the

nature of mankind is capable of receiving, giving from his own store things which he had himself, and entreating God to supply what he himself was not possessed of, knowing that the fountains of his graces are everlasting, but yet that they are not dispensed to all men, but only to such as are suppliants for them; and suppliants are those persons who love virtue and piety, and it is lawful for them to drink up those most sacred springs, inasmuch as they are continually thirsting for wisdom.

Chapter XIII

80

We have now, then, spoken of the proofs of the humanity of the lawgiver, which he displayed by the admirable disposition of his own excellent nature, and also partly by the expositions which he has given in the sacred volumes. We must now proceed to speak of the precepts which he left behind him, commanding that they should be observed by future ages, and we must enumerate, if not all (for that would not be easy), at all events the principal topics which are most closely connected with and most nearly resembling his counsels;

81

for, according to him, gentleness and humanity have not their habitation only in the communion of society which takes place among men, but also of his great liberality and bounty he diffuses it exceedingly, and extends it even to the irrational animals, and to the different species of wholesome trees. And what ordinances he established with respect to each of these things we must proceed to enumerate separately, making our beginning with men.

Chapter XIV

82

Therefore Moses forbids a man to lend on usury to his brother, meaning by the term brother not only him who is born of the same parents as one's self, but every one who is a fellow citizen or a fellow countryman, since it is not just to exact offspring from money, as a farmer does from his cattle.

83

And he enjoins his subjects not to hang back on that account, and to be more slow to contribute to the necessities of others, but rather with open hands and willing minds very cheerfully to give to those who have need, considering that gratitude may in some degree be looked upon as interest repaid at a more favourable season for what was lent in an hour of necessity, being repaid by the voluntary inclination of the receiver of the kindness. And if a person be not willing wholly to give, still at all events let him lend, so as to give the temporary use of what is wanted freely and cheerfully, without expecting to receive anything beyond the principal.

84

For in this way the poor will not become poorer, by being compelled to restore more than they received; nor will they who lent be doing iniquity if they only receive back what they lent. And yet they will not receive nothing more, for with the principal, instead of the interest which they have not demanded to receive, they will gain the best and most honourable of all human things, as they will have displayed kindness and magnanimity, and will have earned a fair reputation and goodwill. And what acquisition is there which is equal to this?

85

for indeed the mightiest monarch appears poor and helpless if he is put in comparison with one single virtue, for he has only inanimate riches buried in his treasures or in the recesses of the earth, but the wealth of virtue is stored up in the dominant part of the soul; and that purest of all essences, heaven, claims itself a share in that, as likewise does the Creator and Father of the universe, God. Therefore we must look upon and denominate the opulence of money-changers and usurers as

poverty, though they appear to themselves to be mighty kings, while they have never beheld that wealth which is really endowed with sight, no not even in their dreams.

86

And these men run into such extravagances of wickedness, that if they have not money, they make usurious advances even of food, lending it on condition of receiving back again more than they lent. Accordingly, such men will speedily afford a contribution to those who ask for one, preparing famine and scarcity against a time of plenty and abundance, and making a revenue of the hunger of the bellies of miserable men, weighing out the food as it were in a scale, and taking care not to give overweight.

87

Therefore he necessarily commands those who live under his sacred constitution to avoid every description of revenues of this kind, for all such pursuits were the sign of a thoroughly slavish and illiberal mind, which must be changed into savageness and into the resemblance of brute beasts, before it could adopt them.

Chapter XV

88

Again, among the different commands which conduce to the extension of humanity, there is this one also established, that every employer is to pay the wages of the poor man the same day that they are earned, not only because, since he has fulfilled the purpose for which he was hired, it is just that he should without any delay receive the reward of his service, but also because, as some persons have said, since the handicraftsman or burden-carrier is only a daily servant and short lived, suffering hardships with his whole body like any common beast of burden, he fixes all his hopes upon his wages, which is he receives at once, he is rejoiced, being both glad now, and ready to work twice as hard to-morrow with all cheerfulness; but if he does not get his wages,

then, besides being exceedingly disappointed, he is weakened in his nerves and sinews through sorrow, and becomes faint, so that he is unable to move himself to the performance of his ordinary tasks.

Chapter XVI

89

Again, the lawgiver says, let no one who lends on usury enter the house of his debtors to take by force any security or pledge for his debt, but let him stand without in the outer court, and wait there entreating his debtor quietly to bring him a pledge; and if he have a pledge to give, let him not evade giving it, since it is fitting that the creditor should not by reason of his power behave in an arrogant manner, so as to insult those who have borrowed of him; and that the debtor also should out of his recollection of the loan of another person's property which he has received, not refuse to give an adequate security.

Chapter XVII

90

And who is there who can avoid admiring the proclamation or commandment about reapers and gatherers of the fruit of the Vineyard? For Moses commands that at the time of harvest the farmer shall not gather up the corn which falls from the sheaves, and that he shall not cut down all the crop, but that he shall leave a portion of the field unreaped, by this law rendering the rich magnanimous and communicative of their wealth, from being compelled thus to neglect some portion of their own lawful property, and not to be eager to save it all, nor to collect it all together, not to bring it all home and lay it up in store, and making the poor at the same time more cheerful and contented. For as the poor have no property of their own, he allows them to go into the fields of their fellow countrymen, and to reap of what they have left as if it were their own.

91

And at the season of autumn he again enjoins the possessors of the land, when they are gathering their fruits, not to pick up those fruits which fall to the ground, nor to glean the vineyards a second time. And he also gives the same command to those who are gathering Olives. Like a most affectionate father, whose children are not all in the enjoyment of equal good fortune, since some of them live in abundance, while others are reduced to the very extremity of poverty; but he, commiserating and pitying them, summons them to partake of the possessions of their brethren, using what thus belongs to others as it were their own, not in so doing inviting them to any action of shameless wrong, but supplying their real necessities, allowing them a participation, not in the crops alone, but even in the land themselves likewise, as far as appearance is concerned.

92

But there are men who are so sordid in their minds, being wholly devoted to the acquisition of money and labouring to the death for every description of gain, without paying any attention to the source from which it is derived, that they glean their vineyards again after they have gathered the fruit, and beat their olive branches a second time, and reap the whole of the land which bears barley and the whole of the land which bears wheat, convicting themselves of an illiberal and slavish littleness of soul, and also displaying their impiety;

93

for they themselves have contributed but a small part of what was necessary for the cultivation of their lands, but the greater number and the most important of the means to render the land fertile and productive have been supplied by nature, such as seasonable rains, a proper temperature of the atmosphere, those nurses of the seeds sown and springing up — heavy and continual dews, vivifying breezes, the beneficial bestowal of the seasons of the year, so that the summer shall not scorch the crops nor the frost chill them, nor the revolutions of spring and autumn deteriorate or diminish what is produced.

94

And though these men know and actually see that nature is continually perfecting her work by these means, and is enriching them with her abundant bounties, nevertheless they endeavour to appropriate the whole of her liberality to themselves, and, as if they themselves were the causes of everything, they give no share of any of their wealth to any one, showing at one and the same time their inhumanity and their impiety. These men accordingly, since they have not laboured in the cause of virtue of their own free will, he reproves and chastises against their will by his sacred laws, which the virtuous man obeys voluntarily, and the wicked man unwillingly.

Chapter XVIII

95

The laws Command that the people should offer to the priests first fruits of corn, and wine, and oil, and of their domestic flocks, and of wools. But that of the crops which are produced in the fields, and of the fruits of the trees, they should bring in full baskets in proportion to the extent of their lands; with hymns made in praise of God, which the sacred volumes preserve recorded in writing. And, moreover, they were not to reckon the first-born of the oxen, and sheep, and goats in their herds and flocks as if they were their own, but were to look upon these also as first-fruits, in order that, being thus trained partly to honour God, and partly also not to seek for every possible gain, they might be adorned with those chief virtues, piety and humanity.

96

Again. The law says, if you see the beast of any one of your relations or friends, or, in short, of any man whatever whom you know, wandering in the wilderness, bring him back and restore him to him; and, if the master be a long way off, then keep the animal with your own until he returns, and then he shall receive back the deposit which he has not entrusted to you, but which you, having found, spontaneously restore to him from your own natural feelings of fellowship.

Chapter XIX

97

Again. Are not all the enactments about the seventh year so formally established, enjoining the people to leave all the land that year fallow and uncultivated, and allowing the poor to go with impunity over the fields of the rich to gather the fruits which that year grow spontaneously as the gift of nature, most merciful and humane ordinances?

98

The law says, “Six years let the inhabitants of the land enjoy the fruits as a reward for the acquisitions which they have made and for the labours which they have undergone in cultivating the land; but for one year, namely, the seventh, let the poor and needy enjoy it, as no work pertaining the agriculture has been done in that year.” For, if any work had been done, it would have been absurd for one man to labour and for another to reap the fruit of his labours. But this ordinance was given in order that, the lands being left this year in some manner without any owners, no cultivation of the land contributing to its fertility, the produce, although full and complete, might be seen to proceed wholly from the bounty of God, coming forth as it were to meet and relieve the necessitous.

99

Again. What are we to say of the commandments given relating to the fiftieth Year? Do not they go to the very furthest extent of humanity? And, indeed, who would deny it, unless he had only tasted of this sacred code of laws with anything more than the edges of his lips, and had not feasted and revelled in its most sweet and beautiful doctrines?

100

For, in this fiftieth year, all the ordinances which are given relating to the seventh year are repeated, and some of greater magnitude are likewise added, for instance, a resumption of a man’s own possessions which he may have yielded up to others through unexpected necessity;

for the law does not permit any one permanently to retain possession of the property of others, but blockades and stops up the roads to covetousness for the sake of checking desire, that treacherous passion, that cause of all evils; and, therefore, it has not permitted that the owners should be for ever deprived of their original property, as that would be punishing them for their poverty, for which we ought not to be punished, but undoubtedly to be pitied.

101

There is also an innumerable host of other special ordinances relating to one's fellow countrymen of great humanity and beauty; but, as I have mentioned them at sufficient length in my former treatises, I shall be satisfied with what I have said on those subjects, which I then put forth seasonably as a kind of specimen of the whole.

Chapter XX

102

Moreover, after the lawgiver has established commandments respecting one's fellow countrymen, he proceeds to show that he looks upon strangers also as worthy of having their interests attended to by his laws, since they have forsaken their natural relations by blood, and their native land and their national customs, and the sacred temples of their gods, and the worship and honour which they had been wont to pay to them, and have migrated with a holy migration, changing their abode of fabulous inventions for that of the certainty and clearness of truth, and of the worship of the one true and living God.

103

Accordingly, he commands the men of his nation to love the strangers, not only as they love their friends and relations, but even as they love themselves, doing them all the good possible both in body and soul; and, as to their feelings, sympathising with them both in sorrow and in joy, so as to appear all one creature, though the parts are divided;

mutual fellowship uniting the whole and rendering it compact and coherent.

104

There is no need of my saying anything about meats, and drinks, and garments, and all the other matters which relate to the usual way of living and to the necessary requirements of life, which the law enjoins that the foreigners shall receive from the natives of the land; for all these things follow the one general law of benevolence, which enjoins every man to love and cherish a stranger in the same degree with himself.

Chapter XXI

105

Moreover, extending and carrying further that humanity which is naturally so attractive, he also gives commandments respecting sojourners, thinking it fitting that those persons who, through any temporary distresses, have been driven from their homes should requite those who have received them with a certain degree of honour, with all imaginable respect, if they have done good to them and have treated them with friendliness and hospitality, and with a moderate degree of respect if they have done nothing more than merely receiving them into the land; for to be allowed to abide in a city with which one is wholly unconnected, or, I might even say, to be allowed only to tread on the soil which belongs to another, is in itself a bounty of sufficient magnitude for those persons who are unable to dwell in their own land.

106

But the lawgiver here, going beyond all the ordinary boundaries of humanity, thinks it fitting and ordains that such sojourners shall bear no ill-will even to those men who, after having received them in the land, may have ill-treated them, since, though their actions may not have been kind, their name at least resembles the characteristics of

humanity. Therefore he says, in express terms, “Thou shalt not curse the Egyptian, because thou wast a sojourner in the land of Egypt.”

107

And yet what evil did the Egyptians ever omit to inflict upon this nation, being continually adding new devices of cruelty to the old ones, and proceeding by all sorts of fresh contrivances to heap inhumanity on inhumanity? But, nevertheless, because originally they received them in the land, not shutting their cities against them, and not making their country inaccessible to them when they first came, the lawgiver says, “Let them, as a reward for their friendly reception of you, have a treaty of peace with you.

108

And if any of them should be willing to forsake their old ways and to come over to the customs and constitutions of the Jews, they are not to be rejected and treated with hostility as the children of enemies, but to be received in such a manner that in the third generation they may be admitted into the assembly, and may have a share of the divine words read to them, being instructed in the will of God equally with the natives of the land, the descendants of God’s chosen people.

Chapter XXII

109

These, then, are the ordinances which he enacts for the sojourners in respect of those who have received them into their land, and he also establishes other merciful laws, full of gentleness and humanity, on behalf even of Enemies;” for he thinks it right with respect to them, even if they are at the gates, and standing under the very walls ready to attack them in their complete armour, and raising their warlike engines against them, that they shall, nevertheless, not be accounted enemies until the citizens have sent heralds to them and invited them to peace, that so, if they will yield, they may find that greatest of all blessings, namely, friendship; but if they are uncomplying and refuse,

then the citizens, having also gained the alliance and co-operation of justice, might go to repel them with a good hope of victory.

110

Moreover, if, after having taken prisoners in a sally, you should entertain a desire for a beautiful woman amongst them, do not satiate your passion, treating her as a captive, but act with gentleness, and pity her change of fortune, and alleviate her calamity, regulating everything for the best;

111

and you will alleviate her sufferings if you cut the hair of her head, and trim her nails, and take off from her the garment which she wore when she was taken prisoner, and leave her alone for thirty days, during which period you shall permit her with impunity to mourn and bewail her father and her mother, and her other relations, from whom she has been separated by their death, or by their being subjected to the calamity of slavery which is worse than death.

112

And, after that period, you shall cohabit with her as with a legitimate wedded wife; for it is right that one who is about to ascend the bed of her husband, nor for hire, like a harlot who makes a traffic of the flower of her beauty, but either out of love for him who has espoused her, or for the sake of the procreation of children, should be thought worthy of the ordinances which belong to a legitimate marriage.

113

On which account the lawgiver has given all his laws with great beauty. For, in the first place, he had not permitted appetite to proceed onwards in its unbridled course, with stiff-necked obstinacy, but he has checked its vehement impetuosity, compelling it to rest for thirty days. And in the second place he has tested love, trying whether it is a frantic passion, easily satisfied, and, in fact, wholly originating in desire, or whether it has any share in that most pure essence of well-tempered reason, for reason will bridle the desire, not allowing it to

proceed to any acts of insolence, but compelling it to abide the appointed period of a month of probation.

114

And, in the third place, he shows his compassion for the captive, if she is a virgin, because it is not her parents who are now giving her in marriage, arranging for her a most desirable connection; and if she is a widow, because she, being deprived of her first husband, is about how to make experiment of another, and this too while he still holds over her the power of a master, even though he studies to exhibit equality; for that which is subject to a master must always be apprehensive of his power, even though he may be very merciful.

115

But if any one, being filled with desire, and being afterwards sated with enjoyment, no longer chooses to continue his cohabitation with his captive, then the lawgiver does not so much punish him as admonish him and correct him, with a view to the improvement of his disposition, for he commands him in such a case not to sell her, nor to retain her any longer as a slave, but to give her liberty freely, and to allow her to depart from him house with impunity, in order that she may not be exposed to some intolerable suffering when any other woman is introduced into the house, by their both quarrelling, as is often the case, out of jealousy, the master being at the same time brought into subjection to more recent charms, and despising those by which he was previously allured.

Chapter XXIII

116

And thus the lawgiver pouring precept after precept into ready and obedient ears, enjoins Humanity. Moreover, even if any beasts of burden belonging to the enemy while bearing burdens are oppressed by the weight, and fall down beneath them, he commands that the people should not pass them by, but that they should lighten their

burdens and raise them up, teaching them thus by remote examples not to be delighted at the unexpected misfortunes even of those who hate them, knowing that to rejoice in the disasters of others is a malignant and odious passion, both akin to and contrary to envy; akin to it, because each of these feelings proceeds from passion, and because they approach near to, and one may almost say reciprocate, one another; but contrary, because the one feeling causes grief at the good fortune of another, and the other excites joy at the misfortunes of one's neighbour.

117

Also the law proceeds to say, If you see the beast of one who is thy Enemy wandering about, leave the excitements to quarrelling to more perverse dispositions, and lead the animal back and restore him to his owner; for so you will not be benefiting him more than yourself; since he will by this means save only an irrational beast which is perhaps of no value, but you will get the greatest and most valuable of all things in nature, namely, excellence.

118

And there will follow of necessity, as sure as shadow follows a body, the dissolution of your enmity; for the man who has received a benefit is willingly induced to make peace for the future as being enslaved by the kindness shown to him; and he who has conferred the benefit, having his own good action for a counsellor, is already almost prepared in his mind for a complete reconciliation.

119

And this is an object which the most holy prophet is endeavouring to bring to pass throughout the whole of his code of laws, studying to create unanimity, and fellowship, and agreement, and that due admixture of different dispositions by which houses, and cities, and altars, and nations, and countries, and the whole human race may be conducted to the very highest happiness.

120

But up to the present time these are only wishes; but they will be hereafter, as I at least persuade myself, most real facts, since God will give a plentiful harvest of virtue, as he does give the harvest of the fruits of the seasons; which we shall never fail to attain to if we cherish a desire for them from our earliest infancy.

Chapter XXIV

121

The ordinances, then, which he laid down for the observance of free-born men are these and others like them. And as it seems he also has established other regulations consistent with them respecting slaves; all of which tend to engender gentleness and humanity, of which he gives a share even to slaves.

122

Accordingly he thinks it fit that those who, because of their need of necessary sustenance, have devoted themselves to the service of others, ought not to be compelled to endure any thing unworthy of a liberal freedom of birth; advising those who have the advantage of their ministrations to have a regard to the unexpected misfortunes which have befallen their servants, and to feel respect for their change of condition. And he does not allow those who become debtors for daily loans, and who, by a parabolical and metaphorical expression, have received both the name and unhappy condition of ephemeral animals, or those who through some even still more urgent necessity have become slaves from having been free men, to suffer misery for ever, but he gives them entire deliverance in the seventh year.

123

For, says he, a period of six years for servitude is sufficient for those debtors who cannot repay the loans to the lender, or who for any other reason have become slaves after having been free. And those who were not naturally slaves are not to be deprived of all happiness and liberty for ever, but are again to return to their former state of

freedom, of which they were deprived through some unforeseen calamities.

124

“And if,” the lawgiver proceeds to say, “one who has been a slave of another for three generations, from fear of the threats of his master, or from a consciousness of having committed some offence, or, if he has committed no offence at all but has a savage and inhuman master, flees for refuge to some one else, in the hope to obtain assistance from him, do not reject him; for it is not consistent with holiness to abandon a suppliant, and even a slave is a suppliant, inasmuch as he has taken refuge on thy hearth, where it is fitting that he should find an asylum, especially if without any guile he has come to offer honest service. And if he cannot obtain this protection, at all events let him be sold to some one else; for it is uncertain what may be the effect of his change of masters, and an uncertain evil is easier to bear than a confessed one.”

Chapter XXV

125

These, then, are the ordinances which he appoints to be observed concerning one's own relations, and strangers, and friends, and enemies, and slaves, and free men, and in short respecting the whole of the human race. And moreover, he extends his principles of humanity and compassion even to the race of irrational animals, allowing them always to share of these benefits as of a pleasant fountain;

126

for in the case of domestic animals, with reference to flocks of sheep, and of goats, and herds of oxen, he commands the people to abstain from using of those animals which are just born, or from taking them either for food or under pretence of sacrificing them. For he looked upon it as a proof of a cruel disposition to plot against such creatures the moment they are born, so as to cause and immediate separation between the offspring and the mother, for the sake of the pleasures of

the belly, or rather on account of some absurd and preposterous unpleasantness which the soul fancies.

127

Therefore, he says to the man who is about to live in accordance with his most sacred constitution, "My good man, there is a great abundance of things of which you are permitted the enjoyment, to which there is no blame attached; for, perhaps, it would have been pardonable if it were not so, since want and scarcity compel men to do many things which otherwise they would not intend. But you ought to be pre-eminent in temperance and the practice of all virtues; being reckoned in the most admirable of all classifications and enrolled in obedience to a most excellent captain, the right reason of nature, by all which considerations you ought to be rendered humane, avoiding receiving in your mind any thing which is wrong.

128

And why in addition to the pains which the animal bears in parturition, should you also inflict other pains from external causes, by the immediate separation of the mother from her offspring? For it is inevitable that she will resist and be indignant when they are thus parted, by reason of the affection implanted by nature in every mother towards her offspring, and especially at the time of their birth; since at this time the breasts are full of milk-like springs, and then if through want of the child which is to suck them the flow of milk receives a check, they become hardened by being distended by the weight of the milk, and the women themselves are overwhelmed with pain.

129

Therefore, says the law, give her offspring to the mother, if not for the whole time, still at all events for the first seven days, to rear on her milk, and render not unprofitable those fountains of milk which nature has bestowed upon her breasts, destroying that second bounty of hers which she has prepared with great prudence, perceiving from a distance by her everlasting and perfect wisdom what will hereafter happen.

130

For her first bounty was the birth by means of which that which had no existence was brought into being; the second bounteous gift was the flow of milk, the most tender and seasonable food for a tender creature, which, though it is only one thing, is at the same time both meat and drink. For inasmuch as part of the milk is of a watery nature, it is drink; and inasmuch as part of it is of a somewhat solid nature, it is meat; and it is endowed with these characteristics from a prudent foresight to prevent the lately born offspring from suffering disaster, through want lying in wait for it at different times, taking care thus that, by the one and the same application of each kind of food, it may escape those cruel mistresses, hunger and thirst.

131

Do you then, you excellent and most admirable parents, read this law and hide your faces, you who are continually plotting the deaths of your children, you who entertain cruel designs against your offspring, so as to expose them the moment that they are born, you irreconcilable enemies of the whole race of mankind;

132

for who is there to whom you ever entertain good will, when you are the murderers of your own children? You who, as far as lies in your power, make cities desolate, beginning with the destruction of your nearest relations; you who overturn all the laws of nature, and pull down all that she builds up; you who are savage and untameable in the barbarity of your souls, raising up destruction against birth, and death against life?

133

Do not you see, that it has been a care to that all-wise and all-good lawgiver, that not even in the case of brute beasts shall the offspring be separated from the mother until it has been nourished by her milk? And this is ordained principally for your sake, you noble persons, that if you have it not by nature, you may at least learn proper affection for your kindred by instruction, and having regard to the examples of

lambs and kids, who are not hindered from revelling in the most abundant possible supply of necessary food, which nature itself prepares for them in the most convenient places, by which easy enjoyment of food is granted to those that stand in need of it the lawgiver providing, with great zeal and care, that no one shall intercept the bountiful and saving gifts of God.

Chapter XXVI

134

And being desirous to implant the seeds of gentleness and humanity in the minds of men, by every kind of expedient imaginable, he adds also another injunction akin to the preceding one, forbidding any one to sacrifice the mother and the offspring on the same day, for even if they are both to be sacrificed, still it must be at different times, for it is the greatest extravagance of barbarity to slay in one day the animal which has been born and her who is the cause of its birth.

135

And for what object is this done? one is slain on pretence of sacrifice, the other for the gratification of the belly. If then it is on pretence of offering them in sacrifice, then the very name is given with falsehood; for animals taken for such purpose are victims, not Sacrifices.(the Greek is sphagia, not thysia.) And what altar of God would ever receive such unholy sacrifices? And as for the fire, would it not of its own accord divide itself in two parts and stand asunder, avoiding all the contamination which might arise from any contact with such a profane thing? I imagine that it would not have remained, no, not for even the briefest time, but would have been immediately extinguished, out of a watchful care that the air, and the most holy nature of the Spirit, should not be polluted by the ascending flames.

136

And if they are not taken to be offered in sacrifice, but with a view to feast on them, then who can there be who would not loathe and reject

all these new and unprecedented kinds of preposterous gluttony? for such men are, indeed, pursuing pleasures which are out of all reason. And what pleasure can it be to men who are eating meat, to devour, on the same occasion, the flesh of the others and of their offspring? And if any one were to desire to mangle the limbs of the two animals together, and to run them in a spit and to roast them, and so to devour them, I do believe that the very limbs themselves would not remain quiet, but would be filled with indignation and would utter speech, through their fury at the extraordinary character of the unprecedented injury done to them, and would revile, with innumerable reproaches for their gluttony, those men who had thus prepared this unmentionable banquet.

137

But the law banishes to a distance from the sacred precincts all animals which are pregnant, not permitting them to be sacrificed until they have brought forth, looking on the animals which are still in the womb as equal to what has just been born; not because those which have never yet come to light are really looked upon as of equal importance with living creatures, but this ordinance is given to banish to a distance the rashness of those persons who are in the habit of confounding everything;

138

for if animals, which grow and increase like plants, and which are considered to be as it were parts of the mothers which have conceived them, being still united to them, and being destined hereafter, after an appointed period of months, to be separated from the close connection to which they are at present attached, are, because of the hope that at some future time they may become living creatures, preserved at present by the safety thus guaranteed to their mothers, in order that the aforesaid pollution may not come to pass; how can it be that the animals, when brought forth, shall not be preserved in a still greater degree, which in their own proper persons have received the gift of

life and body? for it is the most impious of all customs, to slay both offspring and mother at one time and on one day.

139

And it appears to me that some lawgivers, having started from this point, have also promulgated the law about condemned women, which commands that pregnant women, if they have committed any offence worthy of death, shall nevertheless not be executed until they have brought forth, in order that the creature in their womb may not be slain with them when they are put to death.

140

But these men have established these enactments with reference to human beings, but this lawgiver of ours, going beyond them all, extends his humanity even to brute beasts, in order that ... we being accustomed to practise all the things ordained in his laws, may display an excessive degree of humanity, abstaining from pursuing any one, or even from annoying them in retaliation for any annoyance which we have received at their hands, and that we may not store up in secret our own good things, so as to keep them to ourselves, but may bring them into the middle, and offer them freely to all men everywhere, as if they were our kinsmen and our natural brothers.

141

Moreover, let wicked sycophants calumniate the whole nation as one given to inhumanity, and our laws as enjoining unsociable and inhuman observances, while the laws do thus openly show compassion on even the herds of cattle, and while the whole nation from its earliest youth is, as far as the disobedient nature of their souls will admit of, brought over by the honest admonitions of the law to a peaceable disposition.

142

And our lawgiver endeavours to surpass even himself, being a man of every kind of resource which can tend to virtue, and having a certain natural aptitude for virtuous recommendations; for he commands that one shall not take an animal from the mother, whether it be a lamb, or

a kid, or any other creature belonging to the flocks or herds, before it is weaned. And having also given a command that no one shall sacrifice the mother and the offspring on the same day, he goes further, and is quite prodigal on the particularity of his injunctions, adding this also, “Thou shalt not seethe a lamb in his mother’s Milk.”(exodus 23:19.)

143

For he looked upon it as a very terrible thing for the nourishment of the living to be the seasoning and sauce of the dead animal, and when provident nature had, as it were, showered forth milk to support the living creature, which it had ordained to be conveyed through the breasts of the mother, as if through a regular channel, that the unbridled licentiousness of men should go to such a height that they should slay both the author of the existence of the other, and make use of it in order to consume the body of the other.

144

And if any one should desire to dress flesh with milk, let him do so without incurring the double reproach of inhumanity and impiety. There are innumerable herds of cattle in every direction, and some are every day milked by the cowherds, or goatherds, or shepherds, since, indeed, the milk is the greatest source of profit to all breeders of stock, being partly used in a liquid state and partly allowed to coagulate and solidify, so as to make cheese. So that, as there is the greatest abundance of lambs, and kids, and all other kinds of animals, the man who seethes the flesh of any one of them in the milk of its own mother is exhibiting a terrible perversity of disposition, and exhibits himself as wholly destitute of that feeling which, of all others, is the most indispensable to, and most nearly akin to, a rational soul, namely, compassion.

Chapter XXVII

145

I also greatly admire that law which, like a singer in a well-trained chorus, is perfectly in accord with those which have gone before it, and which forbids a man to “muzzle the ox which treadeth out the Corn.” For it is he who, before the sowing was performed, cut the furrows through the deep-soiled plain, and prepared the field for the operations of heaven and for the labours of the husbandman; for the latter, so that he might sow it at a seasonable time, and for the other, that the deep bosom of the earth might receive its bounty displayed in gentle showers, and in consequence might treasure up rich nutriment for the seed and dispense it to it gradually until it should swell into the full ear and bring its annual fruit to perfection. And, after the corn is brought to perfection, then again the ox is necessary for another service, namely, for the purification of the sheaves, and the separation of the chaff from the genuine useful grain.

146

And since I have explained this distinct and humane command respecting the oxen which tread out the corn, I will now proceed to speak of that one which relates to the animals which plough, which is also of the same family; for the lawgiver also forbids the husbandman to yoke the ox and the ass together in the same plough for ploughing, considering in this not only the difference of nature between the two animals, because the one is clean, while the ass is one of the unclean beasts, and it is not becoming to bring together animals which are so utterly alienated, but also because they are unequal in point of strength, he takes care of that which is the weaker, in order that it may not be oppressed and worn out by the greater power of the other. And, indeed, the ass, which is the weaker animal, is driven outside of the sacred precincts; but the more vigorous beast, namely, the ox, is offered up as a victim in the most perfect sacrifices.

147

But, nevertheless, the lawgiver neither neglected the safety of the unclean animals, nor did he permit those which were clean to use their strength in disregard of justice, crying out and declaring loudly in

express words, if one may say so, to those persons who have ears in their soul, not to injure any one of a different nation, unless they have some grounds for bringing accusations against them beyond the fact of their being of another nation, which is not ground of blame; for those things which are not wickedness, and which do not proceed from wickedness, are free from all reproach.

Chapter XXVIII

148

And, being full of mercy in every part, he again displays it in an abundant and exceeding degree, crossing over from the beings endowed with reason to the brute beasts, and from the brute beasts to plants, concerning which we must now proceed immediately to speak, since we have spoken sufficiently already about men, and about all animals which are endowed with life.

149

He has forbidden in express Words to cut down for timber any trees which bear eatable fruit, and to ravage a plain bearing corn before its proper season for the purpose of destroying it, and, in short, to destroy any kind of crop in any manner, in order that the race of mankind may enjoy an abundance of nourishment without any limitation, and may have a sufficiency not only of necessary food, but also of such as conduce to making life luxurious. For the crop of wheat and corn is necessary, as being set apart for the actual daily food of man; but the innumerable varieties of the fruits which grow on trees are given to make his life luxurious; and very often, in times of scarcity, even these become a secondary food.

Chapter XXIX

150

And, going beyond all other lawgivers in humanity, he does not allow his people even to ravage the country of their enemies, but he commands them to abstain from cutting down the trees, thinking it unjust that the anger which is excited against men should wreak itself on things which are innocent of all evil.

151

And, besides this, by this commandment he points out that it is right not to look only at the present, but also by the acuteness of the reasoning powers to survey the future afar off as from a watch-tower, since nothing remains long in the same condition, but everything is subject to alternations and variations; so that it is natural that those who have for a while been enemies, when they have sent heralds and made overtures towards reconciliation, should again become friends in the bonds of peace.

152

And it would be a wicked thing to deprive one's friends of necessary food, who have probably stored up nothing which can be of use to them because of the uncertainty of the future. For this was an admirable Saying (this idea is deservedly reprobated by Cicero, *De Amic.* 16. "We shall be able to arrive at another definition of true friendship when we have first mentioned what Scipio was accustomed to blame with great indignation. He used to say that no sentence more hostile to friendship, or more at variance with every correct notion of it, could possibly be found, than that one of the man who said that it became a man always to form a friendship with the idea that he might some day or other hate his friend. And he said that he could never be induced to believe that this, as some people fancied, had been said by Bias, who was accounted one of the seven wise men, but he looked upon it as the saying of some profligate or ambitious man, or of some one who referred everything to the preservation of his own powers.") which was in vogue among the ancients, that one must enter into friendships without at the same time being blind to the possibility that it may be turned into enmity, and that one must repel an enemy as if

he may hereafter become a friend, in order that each man might, through this consideration, lay up something in his own soul which might conduce to his safety, and might not, being laid completely bare and defenceless, in word and in deed repent of his too great facility of temper, blaming himself when there is no need of any such thing.

153

And cities also should act upon this principle, providing in peace the things which will be necessary in time of war, and in time of war the things which will be desirable in peace, and abstaining from placing such implicit, boundless confidence in their allies, as if they could never possibly change so as to become their enemies; nor, on the other hand, exhibiting such distance towards their enemies as if they would never be able to bring them over to reconciliation and peace.

154

Moreover, if nothing is to be done in favour of one's enemies because of any hope of reconciliation, still, at all events, no plant is an enemy, but all plants are at peace with and useful to one. And those which produce eatable fruit are exceedingly necessary, as their fruit is either actual food or equivalent to food. And why should men be excited to enmity against things which are not hostile, cutting them down, or burning them, or tearing them up by the roots; things which nature herself has brought to perfection by streams of water, and by the admirable temperature of the summer, so that they contribute annual revenues to mankind as subjects to their kings?

155

Moses, therefore, as a good superintendant, exerted all care to implant, not only in animals, but also in plants, invincible strength and vigour, and especially in such as produce eatable fruit, since they are worthy of more care, and are not of equal size and vigour with the wild trees of the forest, since they stand in need of the skill of the husbandman to endow them with greater vigour;

156

for he commands the young plants to be nursed carefully for the space of three years, while the husbandman prunes away the superfluous offshoots, in order that the trees may not be weighed down and exhausted by them, in which case the fruit borne by them would become small and weak through insufficiency of nourishment, and he must also dig round it and clear the ground, in order that no injurious plant may grow near it, so as to hinder its growth. And he does not allow the fruit to be gathered out of season at any one's pleasure, not only because, if that were done, it would be imperfect and produced from imperfect trees (for so also animals which are not perfect themselves cannot produce a perfect offspring), but also because the young plants themselves would be injured, and would in a manner be bowed down and kept as creepers on the earth, by being prevented from shooting up into straight and stout trunks.

157

Accordingly, many husbandmen at the commencement of the spring watch their young trees, in order at once to destroy whatever fruit they show before it gets to any growth or comes to any size, from fear lest, if it be suffered to remain on, it may bring weakness to the parent tree. For it might happen, if some one did not take care beforehand, when the tree ought to bring fruit to perfection, that it will either bear none at all, or not be able to ripen any, being completely weakened by having been allowed to satiate itself with bearing before its proper time, just as old vinestems when weighed down, are exhausted both in root and trunk.

158

But after three years, when the roots have got some depth and have taken a firmer hold of the soil, and when the trunk, being supported as it were on a firm unbending foundation, brows up with vigour, it is then in the fourth year able to bear fruit in perfection and in proper quantity:

159

and in the fourth year he permits the fruit to be gathered, not for the enjoyment and use of man, but that the whole crop may be dedicated to God as the first-fruits, partly as a thank-offering for mercies already received, and partly from hope of good crops for the future, and of a revenue to be derived from the tree hereafter.

160

You see, therefore, what great humanity and compassion our lawgiver displays, and how he diffuses his kindness over every species of man, even if they are foreigners, or even enemies; and secondly, how he extends it also to brute beasts, even though they be not clean, and in fact to every thing, to sown crops, and to trees. For the man who has learnt the principles of humanity with respect to those natures which are devoid of sense, is never likely to err with respect to those which are endowed with life; and he who never attempts to act with severity towards creatures which have only life, is taught a long way off to take great care of those which are also blessed with reason.

Chapter XXX

161

Having, then, by such precepts as these, civilised and made gentle the minds of those who live under the constitution of his laws, he has separated them from haughtiness and arrogance, those most grievous and burdensome of evils, which men in general cling to as the greatest of goods, and especially when riches, or glory, or authority supply them with unlimited abundance;

162

for arrogance is very often engendered in men of no reputation or character, just as any other of the passions, or diseases, or infirmities of the soul, but it does not receive any growth or increase in such men, but, like fire, it is extinguished for want of fuel. But in great men it is very conspicuous, since they, as I said before, have food for this evil in riches, and glory, and authority, with which the men are entirely

filled, and like those who have drunk great quantities of strong wine become intoxicated, and in their drunkenness they attack slaves and free men all alike, and at times even whole cities; for satiety produces insolence, as the proverb of the ancients tells Us.(the expression occurs in Theognis, 16.7.)

163

On which account Moses, when declaring the will of God, enjoins men to abstain from every description of offence, and, above all, from arrogance. And afterwards he reminds them of the things which are wont to kindle passion, such as abundance of immoderate eating, and extravagant wealth in houses, and lands, and cattle; for when they possess these things, they presently become unable to restrain themselves, being distended with pride and puffed up; and the only hope that remains of such men being cured, consists in preventing them from forgetting God.

164

For as when the sun arises, the darkness disappears and all places are filled with light, so in the same manner when God, that sun appreciable only by the intellect, arises and illuminates the soul, the whole darkness of vices and passions is dissipated, and the pure and lovely appearance of bright and radiant virtue is displayed to the world.

Chapter XXXI

165

And still more does he seek to check and eradicate haughtiness, choosing to collect together the causes on account of which he enjoins men to erect in their souls an undying recollection of God; "For God," says Moses, "gives strength to get Power," speaking in this very instructively; for the man who has been accurately and thoroughly taught that he has received an endowment of great strength and vigour from God, will take into consideration the weakness which

belonged to him before he received this great gift, and will consequently repel all haughty, and arrogant, and overbearing thoughts, and will give thanks to him who has been the cause of this change for the better. And arrogance is inconsistent with a grateful soul, as on the contrary ingratitude is nearly akin to haughtiness.

166

Are your affairs prosperous and flourishing? then, receiving and increasing that strength of body which perhaps you did not expect, get power; and what is meant by this expression must be accurately investigated by those who do not very clearly see what is implied in it. Many persons endeavour to bring upon others, what is exactly contrary to the benefits which they have themselves received; for either, having themselves become rich, they prepare poverty for others, or having arrived at a high degree of honour and reputation, they become to others the causes of dishonour and infamy:

167

but it is right rather that the wise and prudent man should, to the best of his power, endeavour to bring his neighbours also into the same condition; and that the temperate man should seek to make others temperate, the brave man to make others courageous, the righteous man to make others just, and in short every good man ought to try to make everyone else good; for these qualities are, as it seems, powers, which the virtuous man will cling to as his own; but infirmity and weakness, on the contrary, are inconsistent with a virtuous character.

168

And in another place also the lawgiver gives this precept, which is most becoming and suitable to a rational nature, that men should imitate God to the best of their power, omitting nothing which can possibly contribute to such a similarity as the case admits of.

169

for all the gifts of the supreme Ruler are of common advantage to all men; and he gives them to some individuals, not in order that they when they have received them may hide them out of sight, or employ

them to the injury of others, but in order that they may bring them into the common stock, and invite all those whom they can find to use and enjoy them with them.

170

We say therefore, that the men possessed of great riches, and of high renown, and of great strength of body, and of great learning, ought to endeavour to make everyone with whom they meet, rich, and strong, and learned, and in short good, and that they ought not to prefer envy and jealousy to virtue, so as to oppose those who might otherwise attain to prosperity;

171

and the law has very beautifully brought those who are inflated by arrogance, and are altogether possessed by incurable pride, not before the tribunal of men, but before the judgment seat of God, to which alone it has assigned the office of judging them; for it says, "Whosoever attempts to do anything in a haughty arrogant manner, makes God Angry."

172

Why so, because in the first place, haughty arrogance is a vice of the soul; but the soul is invisible to any one but God. And anyone who punishes, if he does so blindly, is blameable, as ignorance is his accuser: but if he does so with his eyes open, he is to be praised as doing everything with knowledge; and secondly, because every haughty arrogant man is full of vain groundless pride, looks upon himself as neither man nor demigod, but rather as an actual deity, as Pindar says, (pindar says nothing of the sort. The passage which Philo appears to allude to is the beginning of the second Olympic Ode which Horace has translated, Od. I. 12.1.) thinking himself worthy to overstep all the boundaries of human nature.

173

And as the soul of such a man is blameable, so also is his body in all its positions and motions, for he walks on tip-toes, and lifts his head on high, strutting and giving himself airs, and he is elated and puffed up

beyond his nature, and though he does see yet it is only with distorted optics, and though he hears he hears amiss; and he treats his servants as though they were cattle, and free men as though they were his slaves, and his kinsmen as strangers, and his friends as flatterers, and citizens as foreigners;

174

and he looks upon himself as the most wealthy, the most distinguished, the most beautiful, the strongest, the wisest, the most prudent, the most righteous, the most rational, and the most learned of all men; and then he looks upon all the rest of mankind as poor, of no reputation, dishonoured, foolish, unjust, ignorant, mere dregs of mankind, entitled to no consideration. Very naturally then such a man will be likely to meet, as the interpreter of the will of God tells us, with God himself as his adversary and chastiser.

Chapter XXXIII

175

The most holy Moses, being a lover of virtue, and of honour, and, above all things, of the human race, expects all men everywhere to show themselves admirers of piety and of justice, proposing to them, as to conquerors, great rewards if they repent, namely, a participation in the best of all constitutions, and an enjoyment of all things, whether great or small, which are to be found in it.

176

Now those blessings which are of the greatest importance in the body are good health, without disease; and in a matter of navigation, a successful voyage, without danger; and in the soul, an undying recollection of all things worthy to be remembered. And the blessings of the second class are those which consist of re-establishment, such as a recovery from diseases; a long wished for escape from and safety after great dangers encountered in a voyage, and a recollection which ensues after forgetfulness; the brother and closest relation of which is

repentance, which is not indeed ranked in the first and highest class of blessings, but which has the principal in the class next to the first.

177

For absolutely never to do anything wrong at all is a peculiar attribute of God, and perhaps one may also say of a God-like man. But when one has erred, then to change so as to adopt a blameless course of life for the future is the part of a wise man, and of one who is not altogether ignorant of what is expedient.

178

On which account he calls to him all persons of such a disposition as this, and initiates them in his laws, holding out to them admonitions full of reconciliation and friendship, which exhort men to practise sincerity and to reject pride, and to cling to truth and simplicity, those most necessary virtues which, above all others, contribute to happiness; forsaking all the fabulous inventions of foolish men, which their parents, and nurses, and instructors, and innumerable other persons with whom they have been associated, have from their earliest infancy impressed upon their tender souls, implanting in them inextricable errors concerning the knowledge of the most excellent of all things.

179

And what can this best of all things be except God? whose honours those men have attributed to beings which are not gods, honouring them beyond all reason and moderation, and, like empty minded people that they are, wholly forgetting him. All those men therefore who, although they did not originally choose to honour the Creator and Father of the universe, have yet changed and done so afterwards, having learnt to prefer to honour a single monarch rather than a number of rulers, we must look upon as our friends and kinsmen, since they display that greatest of all bonds with which to cement friendship and kindred, namely, a pious and God-loving disposition, and we ought to sympathise in joy with and to congratulate them, since even if they

were blind previously they have now received their sight, beholding the most brilliant of all lights instead of the most profound darkness.

Chapter XXXIV

180

We have now then described the first and most important of the considerations which belong to repentance. And let a man repent, not only of the errors by which he was for a long time deceived, when he honoured the creature in preference to that uncreated being who was himself the Creator of all things, but also in respect of the other necessary and ordinary pursuits and affairs of life, forsaking as it were that very worst of all evil constitutions, the sovereignty of the mob, and adopting that best of all constitutions, a wellordered democracy; that is to say, crossing over from ignorance to a knowledge of those things to be ignorant of which is shameful; from folly to wisdom, from intemperance to temperance, from injustice to righteousness, from cowardice to confident courage.

181

For it is a very excellent and expedient thing to go over to virtue without every looking back again, forsaking that treacherous mistress, vice. And at the same time it is necessary that, as in the sun shadow follows the body, so also a participation in all other virtues must inevitably follow the giving due honour to the living God;

182

for those who come over to this worship become at once prudent, and temperate, and modest, and gentle, and merciful, and humane, and venerable, and just, and magnanimous, and lovers of truth, and superior to all considerations of money or pleasure; just as, on the contrary, one may see that those who forsake the holy laws of God are intemperate, shameless, unjust, disreputable, weak-minded, quarrelsome, companions of falsehood and perjury, willing to sell their liberty for luxurious eating, for strong wine, for sweetmeats, and for

beauty, for pleasures of the belly and of the parts below the belly; the miserable end of all which enjoyment is ruin to both body and soul.

183

Moreover, Moses delivers to us very beautiful exhortations to repentance, by which he teaches us to alter our way of life, changing from an irregular and disorderly course into a better line of conduct; for he says that this task is not one of any excessive difficulty, nor one removed far out of our reach, being neither above us in the air nor on the extreme borders of the sea, so that we are unable to take hold of it; but it is near us, abiding, in fact, in three portions of us, namely, in our mouths, and our hearts, and our hands; by symbols, that is to say, in our words, and counsels, and actions; for the mouth is the symbol of speech, and the heart of counsels, and the hands of actions, and in these happiness consists.

184

For when such as the words are, such also is the mind; and when such as the counsels are, such likewise are the actions; then life is praiseworthy and perfect. But when these things are all at variance with one another life is imperfect and blameable, unless some one who is at the same time a lover of God and beloved by God takes it in hand and produces this harmony. For which reason this oracular declaration was given with great propriety, and in perfect accordance with what has been said above, "Thou hast this day chosen the Lord to be thy God, and the Lord has this day chosen thee to be his people."

185

It is a very beautiful exchange and recompense for this choice on the part of man thus displaying anxiety to serve God, when God thus without any delay takes the suppliant to himself as his own, and goes forth to meet the intentions of the man who, in a genuine and sincere spirit of piety and truth, hastens to do him service. But the true servant and suppliant of God, even if by himself he be reckoned and classed as a man, still in power, as has been said in another place, is the

whole people, inasmuch as he is equal in value to a whole people. And this is naturally the case in other matters also;

186

for, as in a ship, the pilot is of as much importance as all the rest of the crew put together; and, as in an army, the general is of as much value as the whole of the army, since, if he is slain, the whole army is defeated as much as if it had been slain to a man and utterly destroyed; so in the same manner the wise man is, as to importance, on a par with the whole nation, being defended by that indestructible impregnable fortress, piety towards God.(sections 187-227 appear out of sequence in Yonge's edition under a separate treatise title: On Nobility. The publisher has elected to include them here to conform to the Cohn-Wendland (Loeb) sequence and numbering.)

Chapter XXXV

187

We ought to rebuke in no measured language those who celebrate nobility of birth as the greatest of all blessings, and the cause also of great blessings, if in the first place they think those men nobly born who are sprung from persons who were rich and glorious in the days of old, when those very ancestors themselves, from whom they boast to be descended, were not made happy by their unlimited abundance; since, in truth, that which is really good does not naturally or necessarily lodge in any external thing, nor in any of the things which belong to the body, and indeed I may even say not in every part of the soul, but only in the dominant and most important portion of it.

188

For when God determined to establish this in us out of his own exceeding mercy and love for the human race, he would not find any temple upon earth more beautiful or more suited for its abode than reason: for the mind makes, as it were, an image of the good and consecrates it within itself, and if any persons disbelieve in it of those

who have either never tasted wisdom at all, or else have done so only with the edges of their lips (for silver and gold, and honours, and offices, and vigour and beauty of body, resemble those men who are appointed to situations of authority and power, in order to serve virtue as if she were their queen), never having obtained a sight of the most brilliant of all lights.

189

Since, then, nobility of mind, perfectly purified by complete purifications, is the proper inheritance, we ought to call those men alone noble who are temperate and just, even though they may be of the class of domestic slaves, or may have been bought with money. But to those persons who, being sprung from virtuous parents, do themselves turn out wicked, the region of nobleness is wholly inaccessible;

190

for every bad man is destitute of a house, and destitute of a city, having been driven from his proper country, namely, virtue; which is the real, genuine country of all wise men: and ignobleness does of necessity attach itself to such a man, even though he be descended from grandfathers and great grandfathers whose lives were wholly irreproachable, since he studies to alienate himself from them and detaches himself from and removes to the greatest possible distance from real nobility in all his words and actions.

191

But moreover, besides that wicked men cannot possibly be noble, I also see that they are all of them irreconcilable enemies to nobility, inasmuch as they have destroyed the reputation which accrued to them from their ancestors, and have dimmed and extinguished all the brilliancy which did exist in their race.

Chapter XXXVI

192

And it is for this reason, as it appears to me, that some most affectionate fathers disown and disinherit their sons, cutting them off from their homes and from their kindred, when the wickedness which is displayed in them has over-mastered the exceeding and all-pervading love which is implanted by nature in parents.

193

And the truth of this assertion of mine is easy to be seen from other circumstances also. What good could it ever be to any man that his ancestors had been endowed with ever such great acuteness of vision if he himself were deprived of his eyes? How could that fact assist him to see? Or again, supposing a person to have an impediment in his speech, how would his utterance be assisted by the fact that his parents or his grandfathers had had fine voices? And how will a man who has been emaciated and exhausted by a long and wasting disease, be assisted to recover his former strength, if the original founders of his race are, on account of their strength as athletes, enrolled among the Olympic conquerors, or the victors at any other periodical games? For their bodily infirmities will equally remain in the same condition as before, not receiving any amelioration from the successes of their relations.

194

In the same manner, just parents are of no advantage to unjust men, nor temperate parents to intemperate children, nor, in short, are ancestors of any kind of excellence of any advantage to wicked descendants; for even the laws themselves are of no advantage to those who transgress them, as they are meant to punish them, and what is it that we ought to look upon as unwritten laws, except the lives of those persons who have imitated virtue?

195

On which account, I imagine, that nobility herself, if God were to invest her with the form and organs of a man, would stand before those obstinate and unworthy descendants and speak thus: "Relationship is not measured by blood alone, where truth is the judge, but by a similarity of actions, and by a careful imitation of the conduct

of your ancestors. But you have pursued an opposite line of conduct, thinking hateful such actions as are dear to me, and loving such deeds as are hateful to me; for in my eyes modesty, and truth, and moderation, and a due government of the passions, and simplicity, and innocence, are honourable, but in your opinion they are dishonourable; and to me all shameless behaviour is hateful, and all falsehood, and all immoderate indulgence of the passions, and all pride, and all wickedness. But you look upon these things as near and dear to you.

196

Why, then, do you, when by your actions you show all possible eagerness to alienate yourselves from them, sheltering yourselves under a plausible name, hypocritically pretend in words to a relationship? For I cannot endure seductive insinuations falsely put on, or any deceit; because it is easy for any persons to find out specious arguments, but it is not easy to change an evil disposition into a good one.

197

“And I, looking therefore at these facts, both now consider and shall always think those persons who have kindled sparks of enmity my enemies, and I shall look upon them with more suspicion than upon those who have been reproached openly for want of nobility; for they, indeed, have this to allege in their defence, that they have no connection at all with excellence. But you are justly liable to punishment who act thus after having been born of noble houses, and being fond of making your boast of your noble descent, and of looking upon it as your glory; for, though archetypal models of virtue have been established in close connection with, and in a manner implanted in you, you have determined to give no good impression of them yourselves.

198

But that nobility is placed only in the acquisition of virtue, and that you ought to imagine that he who has that is the only man really

noble, and not the man who is born of noble and virtuous parents, is plain from many circumstances.”

Chapter XXXVII

199

Again, who is there who would deny that those men who were born of him who was made out of the earth were noble themselves, and the founders of noble families? persons who have received a birth more excellent than that of any succeeding generation, in being sprung from the first wedded pair, from the first man and woman, who then for the first time came together for the propagation of offspring resembling themselves. But, nevertheless, when there were two persons so born, the elder of them endured to slay the younger; and, having committed the great and most accursed crime of fratricide, he first defiled the ground with human blood.

200

Now, what good did the nobility of his birth do to a man who had displayed this want of nobleness in his soul? which God, who surveys all human things and actions, detested when he saw it; and, casting it forth, affixed a punishment to it, not slaying him at once, so that he should arrive at an immediate insensibility to misfortunes, but suspending over him ten thousand deaths in his external senses, by means of incessant griefs and fears, so as to inflict upon him the sense of the most grievous calamities.

201

Now there was, in the subsequent generations, a man very greatly approved of, a most holy man, whose piety the sacred historian, who has written the books called the law, has thought worthy of being recorded in the sacred volumes. Accordingly, in the great deluge when all the cities of the world were utterly destroyed (for even the highest mountains were overwhelmed by the increase and continual rising of the rapid flood), he alone was saved, with all his kindred, having

received such a reward for his virtue that it is not possible to imagine a greater One.

202

This man, again, had three sons; and, though they had had their share in the blessing thus bestowed upon their father, one of them dared to turn his father, the cause of his safety, into ridicule, laughing at him, and mocking and reviling him, because of an error which he committed unintentionally, and displaying to those who did not see it what he ought to have, concealed, so as to bring disgrace on him who had begotten Him. Therefore, having now fallen from his brilliant nobility of birth and having become accursed, and having also become the beginning of misery to all his posterity, he suffered all those evils which it was fitting for a man to suffer who had disregarded all the honour due to his parents.

203

But why should I speak of these men, and pass over the first man who was created out of the earth? who, in respect of the nobleness of his birth can be compared to no mortal whatever, inasmuch as he was fashioned by the hand of God, and invested with a form in the likeness of a human body by the very perfection of all plastic art. And he was also thought worthy of a soul, which was derived from no being who had as yet come into existence by being created, but God breathed into him as much of his own power as mortal nature was capable of receiving. Was it not, then a perfect excess of all nobleness, which could not possibly come into comparison with any other which is ever spoken of as favours?

204

for all persons who lay claim to that kind of eminence rest their claims on the nobility of their ancestors. But even those men who have been their ancestors were only animals, subject to disease and to corruption, and their prosperity was, for the most part, very unstable. But the father of his man was not mortal at all, and the sole author of his being

was God. And he, being in a manner his image and likeness according to the dominant mind in the soul,

205

though it was his duty to preserve that image free from all spot of blemish, following and imitating as far as was in his power the virtues of him who had created him, since the two opposite qualities of good and evil (what is honourable and what is disgraceful, what is true and what is false) were set before him for his choice and avoidance, deliberately chose what was false, and disgraceful, and evil, and despised what was good, and honourable, and true; for which conduct he was very fairly condemned to change an immortal for a mortal existence, being deprived of blessedness and happiness, and therefore he naturally was changed so as to descend into a laborious and miserable Life.

Chapter XXXVIII

206

But, however, let these men be set down as common rules and limits for all men, in order to prevent them from priding themselves on their noble birth, and so departing from and losing the rewards of excellence. But there are also other especial rules given to the Jews besides the common ones which are applicable to all mankind; for they are derived from the original founders of the nation, to whom the virtues of their ancestors were absolutely of no benefit at all, inasmuch as they were detected in blameable and guilty actions, and were convicted, if not by any other human being, at all events by their own consciences, which is the sole tribunal in the world which is never led away by any artifices of speech.

207

The first man of them had a numerous family, inasmuch as he had children by three wives, not forming these connections for the sake of pleasure, but because of his hope of multiplying his race. But, of all his

children, one alone was appointed to be the inheritor of his father's possessions; and all the rest, being disappointed of their reasonable hopes, and having failed to obtain any portion whatever of their father's wealth, departed to live in different countries, having been completely alienated from that celebrated nobility of birth.

208

Again, to the one who was approved of as the heir, there were born two sons, twins, resembling one another in no particular except in the hands, and even in them only by some especially providence of God, inasmuch as they were alike neither in their bodies nor in their minds, for the younger one was obedient to both his parents, and was really amiable and pleasing, so that he obtained the praises even of God; while the elder was disobedient, being intemperate in respect of the pleasures of the belly and of the parts beneath the belly, by a regard for which he was induced even to part with his birth-right, as far as he himself was concerned, though he repented immediately afterwards of the conditions on which he had forfeited it, and sought to slay his brother, and, in fact, to do everything imaginable by which he could be likely to pain his parents;

209

therefore they, in the first place, offered up prayers for his brother to the supreme God, who accepted them, and who did not choose to leave any one of them unaccomplished; while to the others they gave, out of compassion, a subordinate rank, appointing that he should serve his brother, thinking, as indeed is the truth, that the fact of not being his own master, is good for a wicked man.

210

And if the elder brother had cheerfully submitted to the servitude, he would have been thought worthy of a secondary reward, as having come off second in a contest of virtue; but as the case stands, having behaved in a self-willed manner, and having refused to submit to servitude, he became the cause of great reproach, both to himself and to his descendants, so that his miserable life has been indelibly

recorded for a most manifest proof that nobility of birth is of no service whatever to those who do not deserve to have it.

Chapter XXXIX

211

These men therefore are both of that class which is open to reproach; men whom, as they showed themselves wicked men, though descended from virtuous fathers, the virtues of their fathers failed to profit in the least, while the vices which existed in their souls did them infinite mischief; and I can also speak of others, who, on the contrary, ranged themselves in a better class, after having been born in a worse, since their forefathers were guilty, while their own life was to be admired and was full of praise and virtue.

212

The most ancient person of the Jewish nation was a Chaldaean by birth, born of a father who was very skilful in astronomy, and famous among those men who pass their lives in the study of mathematics, who look upon the stars as gods, and worship the whole heaven and the whole world; thinking, that from them do all good and all evil proceed, to every individual among men; as they do not conceive that there is any cause whatever, except such as are included among the objects of the outward senses.

213

Now what can be more horrible than this? What can more clearly show the innate ignobleness of the soul, which, by consequence of its knowledge of the generality of things, of secondary causes, and of things created, proceeds onwards to ignorance of the one most ancient uncreated Being, the Creator of the universe, and who is most excellent on this account, and for many other reasons also, which the human reason is unable to comprehend by reason of their magnitude?

214

But this man, having formed a proper conception of this in his mind, and being under the influence of inspiration, left his country, and his family, and his father's house, well knowing that, if he remained among them, the deceitful fancies of the polytheistic doctrine abiding there likewise, must render his mind incapable of arriving at the proper discovery of the true God, who is the only everlasting God and the Father of all other things, whether appreciable only by the intellect or perceptible by the outward senses; while, on the other hand, he saw, that if he rose up and quitted his native land, deceit would also depart from his mind. changing his false opinions into true belief.

215

At the same time, also, the divine oracles of God which were imparted to him excited still further that desire which longed to attain to a knowledge of the living God, by which he was guided, and thus went forth with most unhesitating earnestness to the investigation of the one God. And he never desisted from this investigation till he arrived at a more distinct perception, not indeed of his essence, for that is impossible, but of his existence, and of his over-ruling providence as far as it can be allowed to man to attain to such;

216

for which reason he is the first person who is said to have believed in God, since he was the first who had an unswerving and firm comprehension of him, apprehending that there is one supreme cause, and that he it is which governs the world by his providence, and all the things that are therein. And having attained to a most firm comprehension of the virtues, he acquired at the same time all the other virtues and excellencies also, so that he was looked upon as a king by those who received him, (genesis 23:6.) not indeed in respect of his appointments, for he was only a private individual, but in his magnanimity and greatness of soul, inasmuch as he was of a royal spirit.

217

For, indeed, his servants at all times steadfastly observed him, as subjects observe a ruler, looking with admiration at the universal greatness of his nature and disposition, which was more perfect than is customary to meet with in a man; for he did not use the same conversation as ordinary men, but, like one inspired, spoke in general in more dignified language. Whenever, therefore, he was possessed by the Holy Spirit he at once changed everything for the better, his eyes and his complexion, and his size and his appearance while standing, and his motions, and his voice; the Holy Spirit, which, being breathed into him from above, took up its lodging in his soul, clothing his body with extraordinary beauty, and investing his words with persuasiveness at the same time that it endowed his hearers with understanding.

218

Would not any one, then, be quite correct to say that this man who thus left his native land, who thus forsook all his relations and all his friends, was the most nobly related of all men, as aiming at making himself a kinsman of God, and labouring by every means in his power to become his disciple and friend? And that he was deservedly ranked in the very highest class among the prophets, because he trusted in no created being in preference to the uncreated God, the Father of all? And being honoured as king, as I have said before, by those who received him among them, not as having obtained his authority by warlike arms, or by armed hosts, as some persons have done, but having received his appointment from the all-righteous God, who honours the lovers of piety with independent authority, to the great advantage of all who are associated with them.

219

This man is the standard of nobleness to all who come to settle in a foreign land, leaving that ignobleness which attaches to them from foreign laws and unbecoming customs, which give honours, such as are due only to God, to stocks, and to stones, and, in short, to all kinds of inanimate things; and who have thus come over to a constitution

really full of vitality and life, the president and governor of which is truth.

Chapter XL

220

This nobleness has been an object of desire not only to God-loving men, but likewise to women, who have discarded the ignorance in which they have been bred up, which taught them to honour, as deities, creatures made with hands, and have learnt instead that knowledge of there being only one supreme Ruler of the universe, by whom the whole world is governed and regulated;

221

for Tamar was a woman from Syria Palestina, who had been bred up in her own native city, which was devoted to the worship of many gods, being full of statues, and images, and, in short, of idols of every kind and description. But when she, emerging, as it were, out of profound darkness, was able to see a slight beam of truth, she then, at the risk of her life, exerted all her energies to arrive at piety, caring little for life if she could not live virtuously; and living virtuously was exactly identical with living for the service of and in constant supplication to the one true God.

222

And yet she, having married two wicked brothers in turn, one after the other, first of all the one who was the husband of her virginity, and lastly him who succeeded to her by the law which enjoined such a marriage, in the case of the first husband not having left any family, but nevertheless, having preserved her own life free from all stain, was able to attain to that fair reputation which falls to the lot of the good, and to be the beginning of nobleness to all those who came after her. But even though she was a foreigner still she was nevertheless a freeborn woman, and born also of freeborn parents of no insignificant importance;

223

but her handmaidens were born of parents who lived on the other side of the Euphrates on the extremities of the country of Babylon, such as were given as part of their dowry to maidens of high rank when they were married, but still were often thought worthy to be taken to the bed of a wise man; and so they first of all were raised from the title of concubines to the name and dignity of wives, and in a short time, I may almost say, instead of being looked upon as handmaidens they were raised to an equality in point of dignity and consideration with their mistresses, and, which is the most extraordinary circumstance of all, were even invited by their mistresses to this position and dignity. For envy does not dwell in the souls of the wise, and whenever that is not present they all have all things in common.

224

And the illegitimate sons borne by those handmaidens differed in no respect from the legitimate children of the real wives, not only in the eyes of the father who begot them, for it is not at all surprising if he who was the father of them all displayed an equal degree of good-will to them all, since they were all equally his children; but they also were equally esteemed by their stepmothers. For they, laying aside all that dislike which women so commonly feel towards their stepsons, changed it into an unceasing affection with which they united themselves to them.

225

And the stepsons, showing a reciprocal good will to them, honoured their stepmothers as if they had been their natural mothers. And their brothers, being separated from them only by the mixture in their blood, nevertheless did not think them worthy of only a half degree of affection, but even increased their feelings so that they entertained a twofold degree of love for them, being equally beloved by them in return; and thus more than filled up what might else have appeared likely to be deficient, showing an eagerness to exhibit the same

harmony and union of disposition with them that they did with their brethren by both parents.

226

We must not, therefore, give in to those persons who seek to creep stealthily into the possession of a property belonging to others, namely, nobility of birth, as though it were of right their own, and who, with the exception of those whom I have mentioned, might justly be looked upon as enemies not only of the race of the Jews but of all the human race in every quarter. Of the one because they give a truce to those of the same nation, allowing them to despise sound and stable virtue, through trusting implicitly in the virtue of their ancestors; and of the others because, even if they could attain to the highest and most absolute perfection of all excellence, they would still derive no advantage themselves, because of their not having irreproachable fathers and grandfathers.

227

Than which I do not know that there can possibly be a more mischievous doctrine, if there is no avenging punishment to follow those who being descended of virtuous parents have made themselves, and if on the contrary no honour is to be assigned to those who have become good though born of wicked parents, though the law judges each man by himself, and does not praise or blame any one with reference to the virtues or vices of his ancestors.